

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against the EDUCATION DEPARTMENT (hereinafter, the respondent) without receiving the legally established response to their request.

The claimant states that they requested from the respondent educational administration a copy of various psychopedagogical tests and assessments conducted on the claimant by the guidance teams of CEIP CAMINO DEL NORTE and CREECYL (EDUCATION DEPARTMENT OF CASTILLA LEÓN) during 2019.

Among other information, health data of the claimant is included.

The claimant provides a copy of their request and proof of its submission to the corresponding public registry, as well as emails informing of the availability of the documentation at CEIP CAMINO DEL NORTE.

According to the claimant, they received a response informing them of the availability of the requested documentation at the Educational Center Administration; however, their request for the documentation to be sent via email was not addressed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the claim was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The respondent replied to the forwarded claim; however, they did not address the express request to send the documentation to the claimant's email address.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not satisfy the claimant's requests. Consequently, on August 29, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days.

"...reminding the Agency and the claimants that the documents requested have long been available to them at the Secretariats of the educational centers, or alternatively at the Provincial Directorate of Education of León, this Department reiterates to that Agency its previous argumentation, hoping that this time the arguments presented will be taken into account and countered with opposing reasoning that justifies a decision other than the filing of the proceedings..."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they consider appropriate. The claimant has not submitted any allegations after the admission for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors about their obligations, as well as handling complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/7

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on September 29, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted claim was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim to be accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than a

C/ Jorge Juan, 6

unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect the data of third parties.

V

Conclusion

During the processing of this procedure, the entity being claimed, just as it had previously done with the claiming party, insists before this Agency that the personal data related to the exercise of the requested right of access is available to the claiming party at the Secretariat of the educational centers, or alternatively at the Provincial Directorate of Education of León.

The debate, therefore, centers on the means of delivering the copy of the personal data subject to the right, since while the claiming party asserts that they have the right to have it sent via email, the entity being claimed indicates that the copy of the personal data is available to the claiming party, so that

they can choose the option that suits them best, at the Secretariat of the educational centers, or alternatively at the Provincial Directorate of Education of León.

Article 12.3 of the GDPR states that “3. The data controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.” (the underlining is ours)

Completing the above, Article 15.3 of the GDPR establishes regarding the mode of copy that “3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided otherwise, the information shall be provided in a commonly used electronic format.” (the underlining is ours)

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 1.0, adopted on January 18, 2022, state that,

“32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the data subject requests otherwise (see Art. 12(3)). Article 15(3), third sentence, complements this requirement in the context of access requests, indicating that the data controller is also obliged to provide the response in a commonly used electronic format, unless the data subject requests otherwise. Article 15(3) assumes that, for data controllers who may receive electronic requests, it will be possible to provide the response to the request in a commonly used electronic format (for example, in PDF). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the data subject submits the access request...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

by electronic means, all information must be provided in a commonly used electronic format.

Formatting issues are developed in section 5. The data controller must, as always, apply appropriate security measures, particularly when it concerns a special category of personal data (see point 2.3.4). (the underlining is ours)

The regulation links the delivery of a copy of personal data by electronic means to cases where the data subject has exercised their right of access in this manner, unless requested otherwise, and all this without prejudice to the fact that the delivery in such a format may also be limited to cases where this is possible, especially when security measures must be applied, particularly if special categories of personal data are involved.

Each data controller will have to determine, regarding the modality of the copy of personal data, the means through which they will facilitate the right of access, taking into account the characteristics of their own organization, the type of personal data affected, the necessary security measures, or the circumstances of the data subject, among others. And this is provided that it does not impose an excessive burden or an impediment for the data subject (frustrating the right itself).

This means that, in principle, the data controller cannot be required to provide a copy of the personal data through electronic means.

In the case at hand, the claimant requested their right of access through a written submission presented in person at the registry of the Territorial Delegation of the Junta de Castilla y León in León on December 15, 2022. The exercise of access also referred to personal data related to tests and psycho-pedagogical assessments.

Furthermore, it must be considered that the copy of the personal data includes health data of the

claimant that requires the adoption of specific security measures.

And that the means provided by the respondent to deliver the copy of the personal data did not pose an impediment for the claimant.

If we take into account that the right of access has been available to the claimant since their request, this claim is dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against the DEPARTMENT OF EDUCATION with NIF S4711001J.

SECOND: TO NOTIFY this resolution to A.A.A. and to the DEPARTMENT OF EDUCATION.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es